apportioned for an estranged wife as provided in § 3.454(b). (38 U.S.C. 3203(d); Public Law 87–556)

* * * * *

(f) *Proof of dependents.* The veteran will be considered to have neither wife, child nor dependent parent in the absence of satisfactory proof. Statements contained in the claims folder concerning the existence of such dependents will be considered a prima facie showing. If the necessary evidence is not received (1) within 60 days after the date of request where the award is subject to reduction under paragraph (b) of this section, or (2) prior to the effective date of reduction under paragraph (c) of this section, the veteran's award will be reduced on the basis of no dependents. The full rate may be authorized from the date of reduction if the necessary evidence is received within 1 year after the date of request.

5. Following § 3.551, the cross reference "Effective dates. See § 3.400(e)(2)" is changed to read "Apportionment. See § 3.400(e)."

6. In § 3.556, paragraphs (a) and (e) are amended to read as follows:

§ 3.556 Adjustment on discharge or release.

(a) *Temporary absence—30 days.* Where a competent veteran whose award was reduced under § 3.551(b) is placed on trial visit status or other authorized absence of 30 days or more, the full monthly rate, excluding any allowance for regular aid and attendance, will be restored effective the date of reduction. The full monthly rate for an incompetent veteran, or for a competent veteran whose pension was reduced under § 3.551(c), will be restored effective the date of departure from the hospital unless it is determined that apportionment for an estranged wife should be continued. In all instances, any allowance for regular aid and attendance will be restored effective the date of departure from the hospital. The award will again be reduced, if in order, effective the date of the veteran's return to the hospital.

* * * * *

(e) *Approved discharge.* When a veteran, either competent or incompetent, is given an approved discharge or release, the full rate, including any allowance for regular aid and attendance will be restored effective the date of release from the hospital, subject to prior payments. The award will be based on the most recent rating and, where the award was reduced under § 3.551(b), will include, in the case of a competent veteran, any amounts withheld because of hospitalization. The amount withheld for an incompetent veteran will not be authorized until the expiration of 6 months following a rating of competency by the Veterans Administration or 6 months following removal of legal disability, whichever is later. Any institutional award will be discontinued effective date of last payment, as provided in § 3.501(j). Where an apportionment made under § 3.551(c) is not continued, the apportionment will be discontinued effective the day preceding the date of the veteran's release from the hospital, or, if adjusted, effective the date of the veteran's release from the hospital, unless an overpayment would result. In the excepted cases, the awards to the veteran and apportionee will be adjusted as of date of last payment.

(72 Stat. 1114; 38 U.S.C. 210)

These regulations are effective September 1, 1962.

[SEAL] W. J. DRIVER,
Deputy Administrator.

[F.R. Doc. 62–8815; Filed, Aug. 31, 1962; 8:51 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2759]

[Idaho 08047]

IDAHO

Transferring From the Atomic Energy Commission to the Department of the Interior, Jurisdiction To Issue Rights-of-Way Over Certain Lands

The authority of the Atomic Energy Commission, as the agency having jurisdiction over the public lands withdrawn or set aside for its use as a part of the National Reactor Testing Station by Public Land Orders No. 637 of April 7, 1950, No. 691 of December 5, 1950, and No. 1770 of December 19, 1958, to issue grants of rights-of-way over such lands, is hereby transferred from the Atomic Energy Commission to the Department of the Interior, provided, that any grant under the authority transferred hereby shall be subject to the approval of the Atomic Energy Commission and to such terms and conditions as it may specify. (Authority: Executive Order No. 10355 of May 26, 1952)

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

AUGUST 28, 1962.

[F.R. Doc. 62–8796; Filed, Aug. 31, 1962; 8:47 a.m.]

[Public Land Order 2760]

[Montana 023270]

MONTANA

Reclamation Withdrawal Missouri River Basin Project

Subject to valid existing rights, the following described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws, and reserved for use of the Bureau of Reclamation in connection with the Missouri River Basin Project (Auth: Sec. 3, Act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416)):

PRINCIPAL MERIDIAN

T. 5 S., R. 6 W.,
Sec. 6, lot 1.
Containing 41.64 acres.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

AUGUST 28, 1962.

[F.R. Doc. 62–8797; Filed, Aug. 31, 1962; 8:47 a.m.]

[Public Land Order 2761]

ALASKA

Revoking Certain Alaska Withdrawal Orders in Whole or in Part

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, and by virtue of the authority contained in section 11 of the Act of March 3, 1891 (26 Stat. 1099; 48 U.S.C. 355), it is ordered as follows:

1. Public Land Order No. 899 of June 15, 1953; Executive Order No. 3406 of February 13, 1921; Executive Order No. 4257 of June 27, 1925; Executive Order No. 5419 of August 5, 1930, and the Departmental orders of March 29, 1940, and May 18, 1948, are hereby revoked as hereafter indicated:

a. Public Land Order No. 899, so far as it withdrew the following-described lands as public recreation, park, and campsite areas:

(Juneau 012027)

Elfin Cove

U.S. Survey 2953,
Lot 50.
Containing 0.85 acre.

b. Executive Order No. 4257, so far as it withdrew the following-described lands for use of the United States Coast Guard for lighthouse purposes:

(Juneau 012159)

McFarland Island

U.S. Survey No. 1720,
Tracts A and B.
Containing 136.96 acres.

c. Executive Order No. 3406 of February 13, 1921, withdrawing lands for lighthouse purposes, and Executive Order No. 5419, transferring the lands on Mountain Point, Revillagigedo Channel, to the War Department for a radio station, so far as they affect the following-described lands:

(Juneau 012036)

Revillagigedo Island

Parcel A

A parcel of land situated within U.S. Survey No. 1627, located on Revillagigedo Island, approximately 4.5 miles southeast of Ketchikan, in the First Judicial Division, State of Alaska, more particularly described as follows:

Commencing at Corner No. 2 of U.S. Survey No. 1627; thence West 500.00 feet to a point on the north boundary line of said survey, the True Point of Beginning of this description; thence

S. 1°30′ W., 1,322.80 feet;
S. 87°46′ W., 85.00 feet;
S. 68°58′ W., 235.62 feet;
N. 88°55′ W., 174.90 feet;